

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

SIMPLE FORWARDING, INC., *Claimant*

v.

CHINA UNITED LINES LTD. AND NORTON LILLY
INTERNATIONAL, *Respondents*.

DOCKET NO. 2010(F)

Served: November 14, 2024

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUESTING ADDITIONAL INFORMATION AND ORDERING RESPONDENTS TO ANSWER

On October 4, 2024, I granted leave to Claimant to file an Amended Complaint, to which an Answer was due by November 4, 2024. No Answer was received from either Respondent. In light of the Amended Complaint, and after reviewing all materials submitted in this matter, I require additional information in order to adjudicate the allegations in the Amended Complaint. Therefore, pursuant to 46 C.F.R. § 502.314, I request the information described below.

I. Requests to Claimant

Claimant, Simple Forwarding, Inc., shall provide the following information or indicate why the information cannot be provided.

1. Provide a copy of the master bill of lading, dock receipt, arrival notice and any other shipping documents for the shipment, if available.
2. Provide a copy of all transportation invoices received for the shipment, including for ocean freight.
3. Provide a copy of all invoices received for per diem and demurrage charges.
4. Provide proof of all payments for the shipment, including for per diem and demurrage charges, including:
 - a. Documentation showing which entity paid the per diem; and
 - b. Documentation showing to which entity Claimant paid the charges for the shipment.

5. Provide emails between Claimant, Respondents, and other involved entities regarding the transportation of the shipment and the disputed charges.
6. Identify with what entity did Claimant contract for the ocean shipping of the shipment at issue.
7. Provide all agreements and emails related to the contract for shipping, if available.
8. Explain who World Trade Shipping Ltd. is, including its role related to the issues in dispute. Provide evidence supporting your response.
9. Explain who New Opportunities Trucking Inc. is, including its role related to the issues in dispute. Provide evidence supporting your response.
10. Explain who TQL is, including its role related to the issues in dispute. Provide evidence supporting your response.
11. Describe or explain in detail the events that resulted in the per diem, which Claimant believes is unreasonable. Include the following information in your response:
 - a. Confirm the dates of the per diem at issue.
 - b. Describe the transportation that preceded the per diem, including identifying the entities involved in the transaction.
 - c. Identify who provided the invoice for the per diem, to whom the invoice was provided, and when it was provided.
 - d. Identify who paid the per diem.
 - e. Explain Claimant's reasons why Claimant believes the per diem is unreasonable, and provide evidence supporting your explanation.
12. Provide all information which shows your actual injury and supports your claim for reparations (damages).
13. Provide any other information or documents you believe to be pertinent to the issues in dispute.

II. Request to Respondents China United Lines Limited and Norton Lilly International

1. Respondents China United Lines Limited and Norton Lilly International are **ORDERED** to answer or otherwise respond to the Amended Complaint on or before ***December 16, 2024***. Failure to answer or otherwise respond may result in a default judgment.

Along with an Answer or other response, I request that the Respondents, China United Lines Limited and Norton Lilly International, provide the following information:

2. Provide the same information requested of Claimant above, except for 11.e. and 12.

The parties are **ORDERED** to provide the above responses, information, and documents as described on or before ***December 16, 2024***. Each party may, at the same time, file any additional evidence or argument in support of its claims or defenses. On or before ***December 30, 2024***, each party may also file a reply to the other party's response.

SO ORDERED

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2024.11.13
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Richard Ambrow
Administrative Law Judge